

Council Meeting

March 13, 2024

Page 1

The Claremont City Council held a meeting on Wednesday, March 13, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Spencer Batchelder
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor Joel Tremblay
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski - Absent
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to accept the minutes of the February 27, 2023, City Council meeting.

Voice vote:

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

MAYOR’S NOTES

Mayor Girard listed upcoming events and trips through the Recreation Department.

Mayor Girard states the Fiske Free Library now has immersive reality books.

Assistant Mayor Matteau congratulates Justin Martin as the new Parks and Rec/Community Center Director and a job well done for another successful TSV tournament.

CITY MANAGER'S REPORT

Mr. Manale stated the state department of environmental services has informed the city that the Acuity application is incomplete, a public hearing will be held in Claremont once the documents are complete.

Manager Manale updated the council on the grant for the pickleball/tennis courts.

Manager Manale stated Federal Funding has been awarded to the city.

Manager Manale congratulates Justin Martin on his new opportunity as the Parks and Recreation Director.

APPOINTMENT TO BOARDS AND COMMITTEES

CDA

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to Nominate Jonathan Stone to the Claremont Development Authority.

A motion was made by Councilor Hemingway and seconded by Assistant Mayor Matteau to nominate Councilor Limoges to the Claremont Development Authority.

A motion was made by Councilor Limoges and seconded by Assistant Mayor Matteau to nominate Mayor Girard to the Claremont Development Authority.

A motion was made by Councilor Hayden and seconded by Councilor Tremblay to nominate Candy Crawford to the Claremont Development Authority.

Roll call:

Tremblay – Candy Crawford, Jonathan Stone, Mayor Girard.

Limoges – Jonathan Stone, Mayor Girard, Councilor Limoges.

Matteau – Jonathan Stone, Mayor Girard, Councilor Limoges.

Batchelder – Jonathan Stone, Councilor Limoges, Mayor Girard.

Hemingway – Jonathan Stone, Councilor Limoges, Mayor Girard.

Hayden – Candy Crawford, Councilor Limoges, Mayor Girard.

O’Hearne – Mayor Girard, Councilor Limoges, Jonathan Stone

Girard – Councilor Limoges, Candy Crawford, Jonathan Stone

Motion carried 5-3 in favor of Jonathan Stone, Councilor Limoges, Mayor Girard.

Claremont Arts, History and Culture Resources Preservation Commission

Mayor Girard read an email from a citizen Jay Austin.

By consensus the council has decided to move the appointment for CAH&CRPC to the next meeting.

Director Merrill Explains the need for an ordinance change to add more board members for this specific board.

Councilor O’Hearne asks Mayor Girard to state the new deadline for applications the public

Mayor Girard states the deadline will be April 3rd.

CITIZEN’S FORUM

Mayor Girard ask that all citizens state their name, ward, and stated the five-minute rule.

Gardy Dickerman, Ward 3, Chair of Conservation Commission – Earth Day has prompted clean up week April 14-24 for any individuals and businesses wanting to participate.

NEW BUSINESS

CDA By-Laws

Director Merrill Explains the CDA By-Laws and the items that have been updated.

Councilor Hemmingway asks Director Merrill for clarification under section 4 on economic Development.

Director Merrill explains the CDA could hire but in her experience, this has not been the case.

Hemmingway states he believes all should be uniform.

Councilor O’Hearne inquired about the changes and when they were made.

Director Merrill states the changes were made after the meeting and after the input at the meeting

Councilor O'Hearne asks about minutes and drafts. Councilor O'Hearne also asks why the documents have not been signed and put in front of the Council.

Director Merrill states she was not aware the Council would like that information.

Councilor O'Hearne wanted supporting information to be brought in front of the Council for the bylaws change.

Manager Manale asks for clarification from Councilor O'Hearne.

Councilor O'Hearne responded that he would like draft minutes from the meeting.

Manager Manale informed Councilor O'Hearne he would be sure to get the minutes sent to over.

Mayor Girard asks Director Merrill if the CDA works under the EIN number or another EIN number.

Director Merrill states the CDA is a city board so it does work under the City EIN.

Mayor Girard asks if this effects the city in anyway when applying for grants.

Director Merrill states again it is a City Board and that would need to be coordinated.

Mayor Girard asks Director Merrill if the items should be brought in front of Council.

Mayor Girard states page three, second to last sentence would like to change "establish in person attendance."

Mayor Girard states most grants have the capability of the percentages go back to the department.

Director Merrill responds and states if the department can have the capability.

Councilor Limoges states CDA meetings have been at 7:30 in the morning, would like to see this meeting switch to the earliest as eleven o'clock.

Director Merrill explains board members tend to head to work right after a meeting.

Assistant Mayor Matteau agrees the CDA meeting time should be changed.

Councilor O'Hearne asks this not be accepted until the information asked for is brought before the Council.

Mayor Girard stated by consensus the Council asks that Director Merrill come back with changes.

Motion to Approve Claremont Development Authority By-Laws

The Claremont City Council hereby approves the CDA By-Laws and Policy Statements amended and restated on March 13, 2024.

AYES	_____	ABSENT	_____
NAYS	_____	ABSTAIN	_____

CERTIFICATION

I, Julia Bizzarro, the undersigned officer, hereby certify that the foregoing Motion was adopted by the City Council of the City of Claremont, New Hampshire, at a meeting, duly noticed, and held on Wednesday, March 13, 2024.

Julia Bizzarro, Clerk to the Council

Green Mountain Wind - Waiver of Policy Request
Director Merrill explains the policy.

Green Mountain Power – Dave Grubman (co Manager) States GMP would like to put up a temporary tower to measure weather patterns to determine if there is real potential for wind power on the mountain.

Motion to Waive Policy Prohibiting Building on Class VI Roads

The Claremont City Council hereby authorizes the City Manager or his designees to take all such actions as may be required to waive the City’s 1998 policy prohibiting “building of any kind on Class VI roads” to allow the construction of a temporary meteorological tower on either Tax Map Lot 75-3 or Tax Map Lot 53-3 for the purpose of assessing the wind conditions on Green Mountain.

The waiver for the construction of such structure is conditioned on the application for and issuance of a building permit by the City's Planning and Development Office and is not intended to waive any other requirements under the City's ordinances.

AYES _____ ABSENT _____

NAYS _____ ABSTAIN _____

CERTIFICATION

I, Julia Bizzarro, the undersigned officer, hereby certify that the foregoing Motion was adopted by the City Council of the City of Claremont, New Hampshire, at a meeting, duly noticed, and held on Wednesday, February 28, 2024.

Julia Bizzarro, Clerk to the Council

A motion was made by Councilor O'Hearne and seconded by Assistant Mayor Matteau to waive policy prohibiting building on class VI roads.

Assistant Mayor Matteau asks for clarification.

Attorney Feleen stated back in 1998 council approved a policy that restricted building on a class 6 road.

Mayor Girard asks for confirmation on the lot number 53-3.

Mayor Girard calls for a five-minute break.

Manager Manale confirms 53-3 lot is the correct lot.

Assistant Mayor Matteau asks for clarification on what exactly the council will be voting on tonight.

Mr. Feleen stated to put this device on a Class 6 Road, the first steps.

Councilor Limoges inquires if the city will be liable for any construction with this device at all.

Mr. Feleen states there is no liability.

Councilor Batchelder explains the Council is approving a waiver and gives the Planning office permission to apply for a building permit.

Mr. Feleen explains that a class 6 road is a public road and does not believe it is necessary to sign additional documentation.

Roll call:

Tremblay – Yes

Limoges - Yes

Matteau – Yes

Batchelder – Yes

Hemingway – Yes

Hayden – Yes

O’Hearne – Yes

Girard – Yes

Motion carried 8-0

COMMITTEE REPORTS

Assistant Mayor Matteau explains the Planning board discussed East Green Mountain Road. Discussing short term rentals which should be ready to draft into ordinance form.

Councilor Hemmingway stated the Policy Committee spoke about fire call boxes. Explains a draft change to highlight the fire chief in their processes.

Councilor Hayden stated Weston and Sampson was present for the EPA Steering committee meeting. Starting to work on community engagement on a Sinergy Site and community engagement.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Batchelder would like to see adding 3 alternate seats to the ordinance of Arts & History.

Councilor Batchelder would also like to have elderly exemption updates.

Manager Manale asks the Policy Committee to please look at the Class six roads in general.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 7:25 pm p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to adjourn.

Voice vote:

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Respectfully Submitted,

Jamie L. Foster-De Rosa